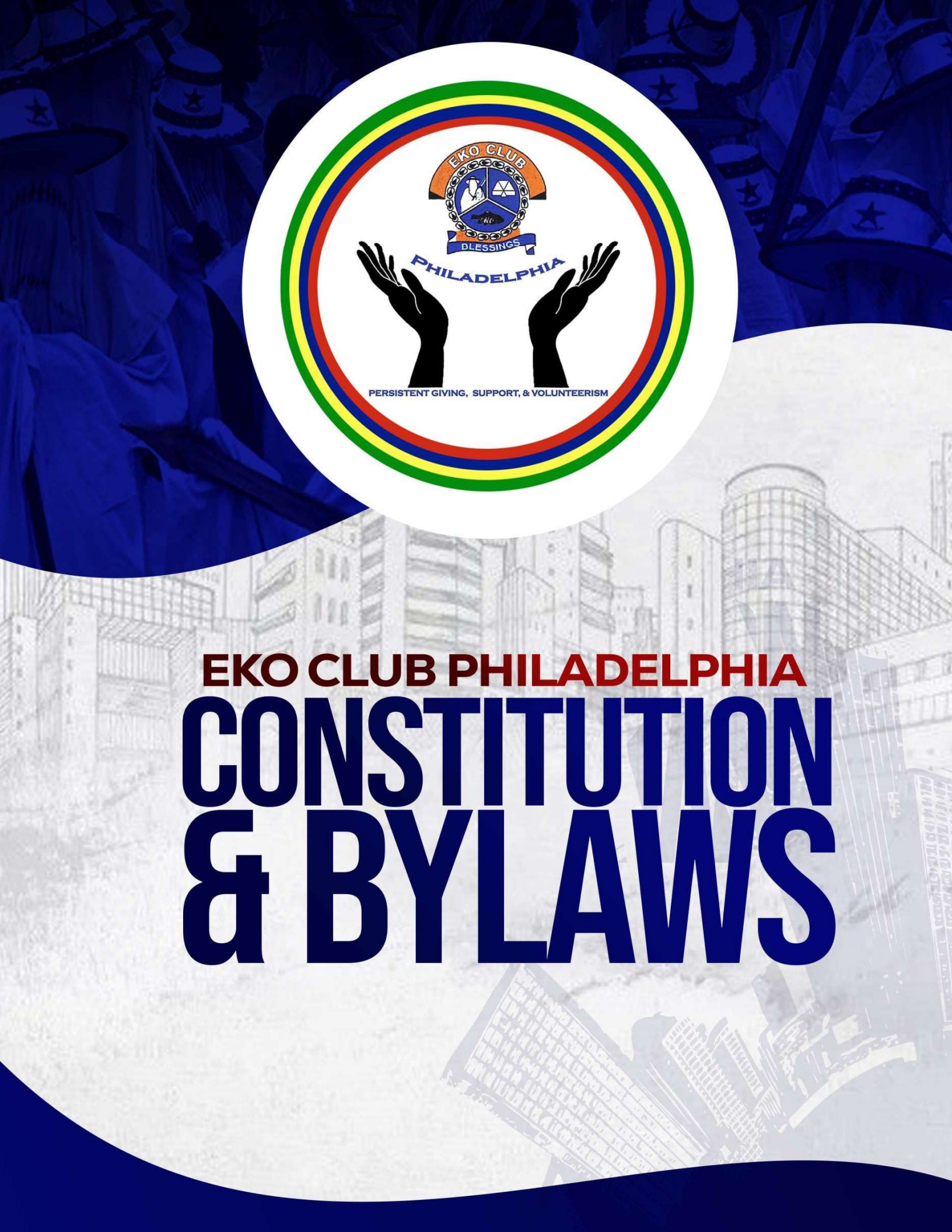


EKO CLUB PHILADELPHIA

CONSTITUTION & BYLAWS

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PREAMBLE

We, the members of Eko Club Philadelphia, recognizing the imperative of uniting all persons of Lagosian descent under a common identity, and acknowledging the democratic principles of our society, do hereby affirm our commitment to active participation and collective advancement in service to our community and humanity.

In pursuit of these ideals, and to provide a legal and operational framework for our activities, we hereby adopt this Constitution and the accompanying By-laws as the supreme governing instrument of the Organization.

ARTICLE I: NAME OF THE ORGANIZATION

Section 1.1 – Official Name The official name of the Organization shall be "Eko Club Philadelphia", duly incorporated under the laws of the United States pursuant to the Internal Revenue Code Section 501(c)(3) and registered under the laws of the Commonwealth of Pennsylvania.

Section 1.2 – Governing Authority This Constitution and its accompanying By-laws shall serve as the binding legal authority regulating the affairs, conduct, and governance of the Organization and its members.

ARTICLE II: COMPLIANCE WITH LAW

Section 2.1 – Supremacy of Law All provisions herein are subject to the Constitution and laws of the United States of America and the Commonwealth of Pennsylvania. In the event of a conflict between these provisions and applicable law, the latter shall prevail, and the conflicting provision shall be deemed amended accordingly.

ARTICLE III: PRINCIPAL OFFICE AND REGISTERED AGENT

Section 3.1 – Principal Office The principal office of the Organization shall be located in Philadelphia, Pennsylvania.

Section 3.2 – Registered Office and Agent The Organization shall maintain a registered office and registered agent within the Commonwealth of Pennsylvania in accordance with the Pennsylvania Nonprofit Corporation Law. The Executive

Council may, from time to time, change the location of the registered office or agent.

Section 3.3 – Additional Offices: The Organization may establish additional offices within or outside Pennsylvania as deemed necessary by the Executive Council.

ARTICLE IV: NON-PROFIT STATUS

Section 4.1 – Non-Profit Nature: The Organization shall operate as a non-profit corporation in accordance with applicable laws.

Section 4.2 – Governing Rules: The Organization shall be governed by this Constitution, the By-laws, and the provisions of the Internal Revenue Code Section 501(c)(3).

Section 4.3 – Permissible Activities All activities shall be charitable, educational, cultural, and otherwise consistent with the purposes permitted for tax-exempt organizations under Sections 501(c)(3) and 170(c)(2) of the Internal Revenue Code.

ARTICLE V: AIMS AND OBJECTIVES

The objectives of the Organization shall include:

1. **Unity of Lagosians** – To unify Lagosians in the United States and contribute to their welfare locally and internationally.

2. **Support for Lagos State** – To promote the economic, cultural, and social development of Lagos State.

3. **Fellowship and Respect** – To foster camaraderie, fellowship, and mutual respect among members.

4. **Community Service** – To encourage voluntary service without expectation of personal gain.

5. **Fundraising and Grants** – To mobilize resources through donations, grants, and fundraising activities in furtherance of the mission.

6. **Ethical Standards** – To uphold the highest standards of efficiency, accountability, and ethical conduct.

7. **Cultural Heritage** – To preserve, promote, and celebrate Lagosian cultural heritage.

8. **Volunteer Engagement –** To recruit and engage volunteers in advancing organizational goals.

9. **Member Support** – To assist members in times of need, including illness, bereavement, and social engagements.

ARTICLE VI: ACQUISITION AND MORTGAGE OF PROPERTY

Section 6.1 – Property Ownership: The Organization may acquire, own, lease, or dispose of real and personal property as necessary to achieve its objectives.

Section 6.2 – Custody of Title: Title to all property shall be held in trust by the Board of Trustees for and on behalf of the Organization.

ARTICLE VII: MEMBERSHIP ELIGIBILITY AND STATUS

Section 7.1 – Eligibility Membership shall be open to all persons of Lagosian heritage (IBILE: Ikorodu, Badagry, Ikeja, Lagos Island, Epe) residing in Pennsylvania and surrounding areas, who meetthe prescribed criteria.

Section 7.2 – Proof of Heritage Applicants must provide verifiable proof that at least one biological parent is of Lagos State origin.

Section 7.3 – Marital Union Membership Spouses who both qualify as Lagosians and are admitted as full members shall be treated as a unit for chapter purposes.

Section 7.4 – Joint Chapter Transfers Where one spouse transfers to another Eko Club chapter, the other spouse shall also transfer to preserve marital unity.

Section 7.5 – Honorary Membership Honorary membership may be conferred upon distinguished individuals by a two-thirds (2/3) majority vote of the Executive Committee, following formal written nomination.

Section 7.6 – Transfer of Membership Members transferring from other Eko Club chapters shall gain automatic membership upon receipt of written endorsement from their current chapter president. Such members shall enjoy all rights and benefits of membership.

Section 7.7 – Collaboration with Other Organizations: The Organization may enter partnerships with like-minded bodies upon majority approval of the General Membership, provided such collaborations are documented in formal agreements.

Section 7.8 – Change of Status or Address Members must promptly notify the Organization of any changes in address, marital status, or contact information. Failure to do so may result in loss of privileges or administrative delays.

ARTICLE VIII: REGISTRATION AND DUES

Section 8.1 – Application Process Prospective members shall submit a completed application and attend three (3) consecutive meetings prior to consideration for approval by the Membership Committee.

Section 8.2 – Application Fee A non-refundable application fee of $100 shall apply, unless otherwise exempted.

Section 8.3 – Monthly Dues Monthly membership dues shall be $25 per member, subject to change by a majority vote of the General Membership.

ARTICLE IX: DISQUALIFIED OR REJECTED APPLICANTS

Section 9.1 – Membership Decision Timeline All membership applications shall be reviewed and decided upon within ninety (90) calendar days from the date of submission. Applicants must attend a minimum of three (3) meetings as observers during this review period.

Section 9.2 – Right to Reject: The Organization reserves the right to reject any applicant deemed unqualified, ineligible, or otherwise unsuitable for membership. Such decisions shall be final unless appealed in writing to the Membership Committee, whose decision shall be binding.

ARTICLE X: MEMBER DISMISSAL

Section 10.1 – Grounds for Dismissal Any member absent for three (3) consecutive meetings without prior notification to the Executive Committee may be subject to suspension, provided all outstanding financial obligations are considered.

Section 10.2 – Notice of Suspension Suspended members shall be formally notified in writing. Reinstatement shall be granted only upon fulfillment of all outstanding financial obligations.

ARTICLE XI: QUORUM

Section 11.1 – Definition A quorum for the transaction of business at any meeting shall consist of a majority of active members in good standing.

Section 11.2 – Continuity of Quorum Once established, a quorum shall be deemed present for the remainder of that meeting unless formally challenged and found deficient.

ARTICLE XII: POLITICAL INVOLVEMENT

Section 12.1 – Prohibition The Organization shall not engage in partisan political campaigns or legislative lobbying on behalf of, or in opposition to, any candidate for public office.

Section 12.2 – Enforcement Violation of this provision shall be subject to disciplinary action in accordance with Article XIII of this Constitution.

ARTICLE XIII: DISCIPLINARY ACTIONS

Section 13.1 – Due Process All members accused of misconduct shall be entitled to due process, including a fair hearing before a designated Disciplinary Committee.

Section 13.2 – Grounds for Sanction Sanctions may be imposed for the following:

1. Corruption

2. Embezzlement of organizational funds

3. Persistent ineffectiveness in assigned duties

4. Engagement in criminal activity

Section 13.3 – Types of Sanctions

Sanctions may include, but are not limited to:

- Monetary fines

- Suspension of membership rights
- Permanent expulsion

Section 13.4 – Approval of Sanctions

All disciplinary recommendations shall require the approval of a two-thirds (2/3) majority of the General Membership present at a duly constituted meeting.

Code of Conduct

- Fighting: First offense – three (3) months suspension; second offense – permanent expulsion.
- Use of Obscene Language: $10 fine and possible removal from the meeting.
- Violations of Integrity: Subject to sanctions under this Article.
- Nonpayment of Dues: Suspension after three (3) months of nonpayment.
- Unexcused Absences: $10 fine per unexcused absence from meetings.

Suspension Rules

Suspended Members:

1. Forfeit all rights, benefits, and privileges of membership.

2. Must satisfy all outstanding financial obligations, including dues in arrears, before reinstatement.

Meeting Conduct Guidelines

To maintain order and professionalism:

1. Meetings shall commence no later than thirty (30) minutes after the scheduled start time.

2. All mobile devices must be turned off or set to silent mode.

3. Members may address the meeting only when recognized by the Chief Whip.

4. All motions require a proposer and a seconder before consideration.

5. Late arrivals shall incur a $10 fine.

EKO CLUB PHILADELPHIA PERSISTENT GIVING, SUPPORT, & VOLUNTEERISM

ARTICLE XIV: SUSPENSION GUIDELINES

1. Suspended members shall not participate in any meetings, events, or activities of the Organization.

2. All benefits and entitlements of membership are forfeited during suspension.

3. Reinstatement shall be granted only upon full payment of outstanding dues, including those that accrued during the suspension period.

ARTICLE XV: MEETING CONDUCT

To maintain decorum and efficiency:

1. Meetings shall begin within thirty (30) minutes of the scheduled start time.

2. Mobile phones and pagers shall be turned off or set to silent mode during proceedings.

3. Members must obtain recognition from the President/Chief Whip before speaking.

4. No motion shall be accepted without a seconder.

5. Late arrivals shall be subject to a $10 fine.

ARTICLE XVI: COLLABORATION WITH OTHER ORGANIZATIONS

The Organization may enter into formal partnerships or cooperative arrangements with other organizations whose aims and objectives align with its mission, provided such collaborations are:

1. Approved by a majority vote of the General Membership; and

2. Formalized through a written and duly executed agreement.

ARTICLE XVII: CHANGE OF MEMBER STATUS

Members are required to promptly notify the Executive Committee of any changes to their:

1. Residential or mailing address

2. Marital status

3. Contact information (telephone, email, etc.) Failure to provide timely updates may result in administrative delays or loss of certain membership privileges.

ARTICLE XVIII – VOTE OF NO CONFIDENCE

1. **Section 18.1** – Grounds for Initiation

A motion for a vote of no confidence may be initiated against any member of the Executive Council or the Board of Trustees at a duly convened General Meeting of the Organization. Grounds for such action may include, but are not limited to:

a. Gross inefficiency, mismanagement, fraudulent practices, corruption, or embezzlement.

b. Violation of the Organization's Code of Conduct as prescribed in Article XIX of these Bylaws.

c. Conduct deemed prejudicial to the interests of the Organization or acts considered unlawful under applicable laws of the United States of America or the Federal Republic of Nigeria.

Section 18.2 – Hearing Procedure

Upon initiation of a vote of no confidence, the matter shall be referred to the Disciplinary Committee for investigation. The Committee shall:

1. Conduct a fair and impartial hearing.

2. Complete its investigation and submit written findings and recommendations within thirty (30) calendar days.

3. Present its recommendations to the General Membership, where final action shall require a two-third (2/3) majority vote of members present.

Section 18.3 – Consequences and Disqualification

Any Executive Council or Board of Trustees member removed through a successful vote of no confidence shall:

1. Be removed from office with immediate effect; and

2. Be ineligible to hold any elected or appointed position in the Organization for a period of two (2) years from the date of removal.

Section 18.4 – Restoration of Eligibility

After the two-year disqualification period, the individual may seek elective office, with eligibility confirmed at the first General Meeting following the expiration of the disqualification period.

ARTICLE XIX – OFFICIAL LANGUAGES

Section 19.1 – Designation

The official and working languages of the Organization shall be English and Yoruba.

Section 19.2 – Right of Language Choice

Members retain the unrestricted right to address meetings in either English or Yoruba, and such choice shall not be abridged or denied.

ARTICLE XX – MEMBERSHIP BENEFITS

Section 20.1 – General Eligibility

To qualify for benefits, a member must:

1. Have been registered with the Organization for at least one (1) year; and

2. Remain in good financial standing during that period. All benefits require prior approval of the General Membership and authorization by the President.

Section 20.2 – Bereavement Benefits

1. Definition of Immediate Family: For purposes of this Article, "immediate family" means a spouse or biological child only.

2. Entitlements:

a. Death of an Immediate Family Member – $500 (Five Hundred Dollars) to the member.

b. Death of an Active Member – $1,000 (One Thousand Dollars) toward funeral expenses, in addition to any voluntary donations by members.

Section 20.3 – Illness or Hospitalization

A member hospitalized or bedridden for at least three (3) consecutive days shall receive a fruit basket and goodwill card, with a combined value not exceeding $50 (Fifty Dollars) per incident.

Section 20.4 – Celebratory Benefits

1. Wedding – $250 (Two Hundred Fifty Dollars).

2. Graduation, Milestone Birthday, or Naming Ceremony – A gift not exceeding $100 (One Hundred Dollars).

3. All above amounts exclude voluntary contributions by members.

ARTICLE XXI – OFFICERS OF THE ORGANIZATION

Section 21.1 – Composition Governance and administration shall be vested in:

1. Board of Trustees (BOT) – Up to five (5) members, including:

a. Chairman

b. Secretary

c. Three (3) additional members

2. Executive Council (EC) – Responsible for day-to-day operations. All members serve voluntarily and without compensation.

Section 21.2 – Appointment and Election

- BOT members, professional officers, and committee members may be appointed by the Executive Council with two-thirds (2/3) approval of active members.

- All other officers shall be elected in accordance with the electoral provisions in this Constitution.

Section 21.3 – Executive Council Composition

a. President

b. Vice President

c. General Secretary

d. Treasurer/Financial Secretary e. Public Relations Officer (PRO) / Social Secretary

ARTICLE XXII – DUTIES, ROLES, AND TENURE OF OFFICERS

Section 22.1 – President

- Eligibility: Must be a Lagosian by birth with at least one biological parent of Lagos State origin.

- Duties: Chief Executive Officer, spokesperson, presides over meetings, enforces discipline, delivers annual address, delegates responsibilities, and appoints committees.

- Tenure: Two (2) years per term, maximum of two consecutive terms; re-eligibility after a three-year gap.

Section 22.2 – Vice President

- Eligibility: Must be a Lagosian by birth with at least one biological parent of Lagos State origin.

- Assumes duties of President in absence or vacancy; may contest thereafter.

- Oversees fundraising and other delegated committees.

Section 22.3 – General Secretary

- Eligibility: Must be a Lagosian by birth with at least one biological parent of Lagos State origin.

- Heads Secretariat; issues meeting notices; records and preserves minutes; maintains membership register; safeguards governing documents; overseas administrative staff.

Section 22.4 – Treasurer/Financial Secretary

- Eligibility: Must be a Lagosian by birth with at least one biological parent of Lagos State origin.

• Chief Financial Officer; maintains custody of funds; deposits within 72 hours; keeps accurate records; co-signs accounts; presents monthly financial reports; assists audits; prepares budgets; advises on fiscal management.

Section 22.5 – Public Relation Officer/Social Secretary

• Eligibility: Must be a Lagosian by birth with at least one biological parent of Lagos State origin.

• Responsible for communications, publicity, social/cultural events, organizational image, media relations, publications, annual event calendar, fundraising coordination, outreach, digital engagement, and records of all PR and social activities

ARTICLE XXIII – PROFESSIONAL OFFICERS AND COMMITTEES

Section 23.1 – Professional Officers

• Positions include Auditor-General and Legal Adviser.

• Appointed with two-thirds (2/3) membership approval must have requisite qualifications.

• Voluntary service without compensation unless approved.

Section 23.2 – Committees

• EC may form committees with up to five members, chaired by an EC appointee.

• Committees report to the President and/or General Secretary before each general meeting.

• BOT or EC may dissolve or reconstitute non-performing committees.

• Quorum is two-thirds (2/3) of members.

• May form subcommittees or ad hoc committees for specific tasks.

ARTICLE XXIV – ELECTIONS, ELECTORAL PROCESS, AND APPEALS

• Biennial elections in November; secret ballot; organized by Electoral Committee.

• Candidate eligibility: good financial standing, vetted, nominated and seconded by two members in good standing, four years' chapter membership for key offices, two years for transferred members; no campaigning before clearance; no proxy voting.

• Only members in good standing may vote; quorum required.

• Debates held for candidates to present manifestos.

• Appeals: Disqualified candidates may appeal to BOT within 72 hours, but no later than three days before election.

• Nominations shall be accepted for the offices of President and Vice President upon payment of a non-refundable application fee of one hundred dollars ($100). All other elective positions shall require a non-refundable application fee of fiftydollars ($50).

ARTICLE XXV – TERM OF OFFICE

• All officers serve two-year terms; new officers assume office immediately after elections.

• Maximum of two consecutive terms in same office; one-year gap before recontesting same office.

• Orientation for newly elected officers includes duties review, organizational structure, strategic plan, and distribution of official documents.

ARTICLE XXVI – VACANCIES AND RESIGNATIONS

Section 26.1 – Resignation

(a) Any officer intending to resign shall submit a written notice to the General Secretary at least one (1) month in advance of the intended effective date.

(b) Upon receipt, the General Secretary shall promptly notify the President, who shall appoint an interim replacement to serve until the next General Meeting.

(c) In the case of the President, the written resignation shall be submitted directly to the Board of Trustees at least one (1) month before the intended resignation date.

Section 26.2 – Vacancy

Any vacancy created by resignation, removal, incapacitation, or death shall be filled by election at the next duly convened General Meeting of the Organization.

ARTICLE XXVII – DOCUMENTATION AND TRANSITION

Section 27.1 – Custody of Documents

All records, files, and documents of the Organization shall remain the sole property of the Organization and shall be maintained by the General Secretary. Outgoing officers shall deliver all official materials to their successors prior to the first General Meeting following an election.

ARTICLE XXVIII – DUTIES, FUNCTIONS, AND QUALIFICATIONS OF THE BOARD OF TRUSTEES

Section 28.1 – Term of Office

Members of the Board of Trustees shall serve a term of two (2) consecutive years.

Section 28.2 – Functions The Board of Trustees shall:

1. Consist of three (3) members, who shall elect from among themselves a Chairperson, Vice-Chairperson, Treasurer, and Secretary.

2. Establish policies and provide strategic direction for the Organization.

3. Exercise fiduciary oversight to ensure proper fiscal and operational management.

4. Approve the mission, vision, and program priorities of the Organization.

5. Preserve and safeguard all corporate records, including tax exemption documents, minutes, and legal records;

6. Convene periodic meetings to review performance and ensure compliance with the Organization's objectives;

7. Refrain from participating in or influencing any electoral process;

8. Remain in office for up to thirty (30) days following the simultaneous expiration of the Executive Council and the Board, or until a new Executive Council assumes office, whichever occurs first.

ARTICLE XXIX – MEETINGS

Meetings of the Organization, including General, Executive, and Board sessions, shall be held in accordance with these Bylaws. All meetings shall:

- Follow an approved agenda;

- Satisfy quorum requirements;

- Maintain accurate minutes; and

- Proceed according to recognized parliamentary order.

Late arrivals, unexcused absences, and breaches of meeting decorum shall be subject to the fines and disciplinary measures set forth in these Bylaws.

ARTICLE XXX – RELATIONSHIPS WITH OTHER ORGANIZATIONS

The Organization may, in furtherance of its objectives, collaborate with other Nigerian, U.S.-based, or international organizations to promote the welfare of Nigerians and foster global peace, provided that such partnerships do not conflict with these Bylaws or the Organization's mission.

ARTICLE XXXI – OPERATING PERIOD

Section 31.1 – Fiscal Year

The fiscal year of the Organization shall commence on January 1 and conclude on December 31 of each calendar year.

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ARTICLE XXXII – AMENDMENTS TO THE BYLAWS

Section 32.1 – Submission of Proposed Amendments

Proposals to amend these Bylaws shall be submitted in writing to the General Secretary no later than the April General Meeting in each five-year review cycle.

Section 32.2 – Consideration and Adoption

All proposed amendments submitted on or before the April General Meeting shall be presented to the General Membership for discussion and shall be voted upon at the December General Meeting prior to officer elections. Adoption shall require a two-thirds (2/3) majority vote of members present and eligible to vote.

Section 32.3 – Limitation

These Bylaws may be amended in part but shall not be repealed or abolished in their entirety.

Section 32.4 – Certification of Amendments

Upon approval, amendments shall be certified by the sitting President and General Secretary. No amendment shall be valid without their signatures, and each adopted amendment shall state the name(s) of the proposer(s) or proposing committee.

ARTICLE XXXIII – DISCLAIMER OF LIABILITY

Section 33.1 – Organizational Indemnity

The Organization shall bear no liability for any actions, statements, or commitments— whether oral, written, or electronic—made in the name of Eko Club Philadelphia without prior written authorization from the Executive Council. This indemnity includes, but is not limited to, the unauthorized release of information, public statements, or contractual commitments purporting to bind the Organization.

CERTIFICATION OF THE BYLAWS OF EKO CLUB PHILADELPHIA, INC.

These Bylaws have been reviewed, adopted, and certified as the official governing document of Eko Club Philadelphia, Inc., by a two-thirds (2/3) majority vote of the General Membership on the ___ day of _____, 2025.

EXECUTIVE OFFICERS

• President

• Vice President

• General Secretary

• Treasurer / Financial Secretary

• Public Relations Officer / Social Secretary

BOARD OF TRUSTEES

• Chairperson

• Board Secretary

• Member(s)

CERTIFICATION

I hereby certify that these Bylaws have been duly adopted in compliance with the procedures set forth herein and are binding upon all members of Eko Club Philadelphia, Inc.

IN WITNESS WHEREOF, I affix my signature this ___ day of _____, 2025.

_____

President

_____

General Secretary

Subscribed and sworn before me this ___ day of _____, 2025.

_____

Notary Public

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